

25NNCV05738 25NNCV05738

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-21

Motion: DEMURRER TO FIRST AMENDED COMPLAINT

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Case Number: 25NNCV05738 Hearing Date: July 21, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JESSICA EDILMA FLORES, et al.,

Plaintiff(s),

vs.

LUIS
CARVAJAL, et al.,

Defendant(s).

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CASE NO.: 25NNCV05738

[TENTATIVE]

ORDER RE: DEMURRER TO FIRST AMENDED COMPLAINT

Dept.

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8:30

a.m.

July 21,

2026

I. INTRODUCTION

On August 15,

2025, plaintiffs Jessica Edilma Flores and Sarah Nicole Ramirez (collectively, "Plaintiffs") filed this action against defendants Luis Carvajal, Gracela Carvajal, Carvajal Family Trust, Elena Maria Galvez, Rafael Sibrian, Paulina Sibrian, and Lankershim Ranch Land & Water Company.

On

May 18, 2026, Plaintiffs filed the First Amended Complaint ("FAC") asserting causes of action for: (1) negligence, (2) premises liability, (3) negligent hiring, supervision, and retention, (4) battery, (5) assault, and (6) intentional infliction of emotional distress. The action arises from an altercation that occurred on August 27, 2023, between Plaintiffs and Elena

Galvez, Rafael Sibrian, and Paulina Sibrian at 10656 Victory Blvd., North Hollywood, CA 01606 ("Property"). (FAC, ¶¶ 1, 2.) Plaintiffs allege they are tenants living at the Property, which is owned by Luis Carvajal, Gracela Carvajal, Carvajal Family Trust, and Lankershim Ranch Land & Water Company and managed by Elena Galvez ("Galvez"), the on-site manager of the Property; Rafael Sibrian ("Sibrian") and Paulina Sibrian are Galvez's husband and daughter, respectively.

On June 23, 2026, Galvez and Sibrian, along with Luis Carvajal and Gracela Carvajal (the "Carvajals", and collectively with Galvez and Sibrian, "Defendants") filed this demurrer. The demurrer is unopposed.

II. LEGAL STANDARD

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (Code Civ. Proc., § 430.10, subd. (e).) A demurrer tests the legal sufficiency of the pleadings and will be sustained only where the pleading is defective on its face. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 459.)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) A demurrer for uncertainty will be sustained only where the complaint is so bad that the defendant cannot reasonably respond. (Code Civ. Proc., § 430.10, subd. (f).)

III. DISCUSSION

Defendants

demur to the First, Second, Third, and Sixth Causes of Action for negligence, premises liability, negligent hiring, supervision and retention, and intentional infliction of emotional distress. Defendants contend that the FAC fails to state facts sufficient to constitute a cause of action and is uncertain. Defendants argue that the FAC "indiscriminately lumps together eight differently situated defendants including individual property owners, a family trust, two unidentified entities, an alleged on-site manager, and two of the

manager's family members." (Demurrer, p. 5.) Defendants contend that Plaintiff must specify which defendants owned, leased, occupied, controlled, managed, or maintained the Property, who hired Galvez and what her roles and responsibilities were, and allege facts supporting any defendant's actual or constructive notice of prior similar incidents that would have made the alleged altercation foreseeable. (Demurrer, p. 5.) Defendants also claim they are unable to determine against whom the IIED claim is asserted because it only refers to "Defendants" generally. (Demurrer, pp. 5-6.)

A.

First

Cause of Action for Negligence and Second Cause of Action for Premises Liability

The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) Defendants argue that the First and Second Causes of Action for negligence and premises liability only assert that a duty of care was owed by "owners, managers, and controllers" but fail to plead which defendant owned, managed, or controlled the premises. This is inaccurate. Plaintiffs allege that the premises were owned by the Carvajals and managed by Galvez. (FAC, ¶¶ 2, 7.) Also, insofar as Defendants complain that the FAC utilizes group pleading, the Court notes that Defendants demur to each cause of action as a group without specifying how each cause of action might fail against each of them.

Defendants additionally argue that the duty Plaintiffs seek to impose is a duty to prevent violent conduct by third persons, but Plaintiff fails to allege facts showing that the violent conduct was foreseeable and that there was evidence of prior similar incidents or reasonably foreseeable risk of violent assaults on the property. (Demurrer, p. 8.) Plaintiff only alleges that there was a "long history of harassment, discrimination, and targeted conduct by [Galvez] and her family, including denial of amenities, surveillance, verbal abuse, and intimidation," none of which implicates any similar incidents of violent conduct or a reasonable foreseeable risk of violent conduct.

Therefore, the demurrer to the First and Second Causes of Action is SUSTAINED.

B.

Third

Cause of Action for Negligent Hiring, Supervision, and Retention

An employer may be directly liable “if it ‘knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.’” (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139.) “To establish negligent supervision, a plaintiff must show that a person in supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act.” (Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902, 189.) Plaintiffs allege that Defendants hired and retained Galvez as manager and permitted her family to act as agents/employees. Plaintiffs do not sufficiently allege how Galvez was “unfit or posed a risk” nor do Plaintiffs plead facts showing that Defendants “knew or should have known of the ongoing harassment and prior incidents.”

Accordingly, the demurrer to the Third

Cause of Action is SUSTAINED.

C.

Sixth

Cause of Action for IIED

To plead an IIED claim, a plaintiff must allege facts showing: (1) extreme and outrageous conduct by defendant with intention of causing, or reckless disregard of probability of causing, emotional distress, (2) plaintiff's suffering severe or extreme emotional distress, and (3) actual and proximate causation of emotional distress by defendant's outrageous conduct. (Smith v. BP Lubricants USA Inc. (2021) 64 Cal.App.5th 138, 147.)

Defendants argue that Plaintiffs' IIED

claim does not allege facts demonstrating “outrageous conduct.” A defendant's conduct is considered to be “outrageous” if it is “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) Here, Plaintiffs do not allege facts showing outrageous conduct; Plaintiffs only allege in conclusory terms that Galvez, her husband, and her daughter engaged in “a pattern of harassment,

intimidation, and physical violence." (FAC, ¶¶ 40-41.)

Therefore, the demurrer to the Sixth Cause of Action is SUSTAINED.

IV. CONCLUSION

Based on the foregoing, Defendants' demurrer to the First, Second, Third, and Sixth Causes of Action is SUSTAINED. As Plaintiffs did not oppose this demurrer and failed to show how amendment is possible, no leave to amend shall be granted.

Moving party to give notice.

Dated
this 21st
day of July
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.